because there is what the lawyers call ‘a case’. He should consider ‘all the relevant facts’. That would include ‘public morale and order’ and ‘public policy and interest in the widest sense’.

If Advani’s officials had succeeded in the parleys with the Hizbul Mujahideen in 2000, is there the slightest doubt that its chief, Syed Salahuddin, and his men would have received pardon? So, undoubtedly, would the Naga militants if the talks with them succeeded. Conditions for pardon are common in peace accords. In the Federalist Papers, Hamilton supported giving this power to the executive, rather than the legislature, so that ‘in seasons of insurrection or rebellion’ an offer of pardon is made in time instead of ‘letting slip the golden opportunity’[8] for peace. That is certain to happen in Kashmir if Afzal is executed.

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